

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: [REDACTED]	Team: Squad #10	CCRB Case #: 202303147	☐ Force ☒ Abuse	☒ Discourt. ☐ O.L.	☐ U.S. ☐ Injury
Incident Date(s) Wednesday 04/12/2023 4:53 PM Wednesday 04/12/2023 5:05 PM	18 Mo. SOL 10-12-2024 10-12-2024	Location of Incident: in front of [REDACTED] Broadway; over the phone		Precinct: 24	
Date/Time CV Reported Wed, 04/12/2023 5:13 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 04/12/2023 5:13 PM		

Complainant/Victim	Type	Home Address
1. [REDACTED]	Comp/Victim	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. PO Seturah Blease	21151	967777	024 PCT
2. SGT Stephen Collich	00657	888567	024 PCT
3. PO Mark Kraljevic	15822	946604	024 PCT
4. PO Crystal Beatty	03500	972524	024 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Mariely Delacruz	20373	973339	024 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Seturah Blease	Abuse of Authority: In front of [REDACTED] Broadway in Manhattan, Police Officer Seturah Blease threatened to arrest [REDACTED]	A . Within NYPD Guidelines
B . PO Seturah Blease	Abuse of Authority: In front of [REDACTED] Broadway in Manhattan, Police Officer Seturah Blease threatened to remove [REDACTED] to the hospital.	B . Within NYPD Guidelines
C . PO Seturah Blease	Discourtesy: In front of [REDACTED] Broadway in Manhattan, Police Officer Seturah Blease acted discourteously toward [REDACTED]	C . Substantiated
D . PO Mark Kraljevic	Abuse of Authority: In front of located at [REDACTED] Broadway in Manhattan, Police Officer Mark Kraljevic threatened to arrest [REDACTED]	D . Unfounded
E . SGT Stephen Collich	Abuse of Authority: Over the phone, Sergeant Stephen Collich did not process [REDACTED]'s complaint regarding an officer.	E . Miscellaneous - Subject Retired
F . PO Seturah Blease	Other Possible Misconduct Noted: Police Officer Seturah Blease failed to prepare a memo book entry as required.	F . Other Possible Misconduct
G . PO Mark Kraljevic	Other Possible Misconduct Noted: Police Officer Mark Kraljevic failed to prepare a memo book entry as required.	G . Other Possible Misconduct
H . PO Crystal Beatty	Other Possible Misconduct Noted: Police Officer Crystal Beatty failed to prepare a memo book entry as required.	H . Other Possible Misconduct

Case Summary

On April 12, 2023, [REDACTED] filed this complaint with the CCRB via the call processing system.

On April 12, 2023, at approximately 4:53 p.m., outside of the [REDACTED] located at [REDACTED] Broadway in Manhattan, PO Seturah Blease, PO Mariely Delacruz, PO Mark Kraljevic, and PO Crystal Beatty, all of the 24th Precinct, responded to multiple 911 calls regarding an altercation between [REDACTED] and a [REDACTED] employee.

PO Blease threatened to arrest [REDACTED] (**Allegation A: Abuse of Authority – Threat of Arrest, within NYPD Guidelines**), threatened to have [REDACTED] removed to the hospital (**Allegation B: Abuse of Authority – Threat Removal to Hospital, within NYPD guidelines**), and pointed her finger in [REDACTED]'s face (**Allegation C: Discourteous – Action, Substantiated**). PO Kraljevic allegedly threatened to arrest [REDACTED] (**Allegation D: Abuse of Authority – Threat of Arrest, Unfounded**).

At approximately 5:05 p.m., [REDACTED] called the 24th Precinct stationhouse and spoke with Sergeant Stephen Collich, also of the 24th Precinct, and he failed to process [REDACTED]'s complaint against PO Blease (**Allegation E: Abuse of Authority – Refusal to Process Civilian Complaint, Miscellaneous – Subject Retired**).

PO Blease, PO Kraljevic, and PO Beatty did not prepare a memo book entry for this incident (**Allegations F, G, and H: Other Possible Misconduct, Failure to Prepare a Memo Book Entry**).

There were no arrests made or summons issued regarding this incident.

The investigation obtained body-worn camera (BWC) video footage for PO Blease, PO Delacruz, PO Kraljevic, and PO Beatty (**BR01, BR02, BR03, BR04**).

Findings and Recommendations

Allegation (A) Abuse of Authority: In front of [REDACTED] Broadway in Manhattan, Police Officer Seturah Blease threatened to arrest [REDACTED].

Allegation (B) Abuse of Authority: In front of [REDACTED] Broadway in Manhattan, Police Officer Seturah Blease threatened to remove [REDACTED] to the hospital.

Allegation (C) Discourtesy: In front of [REDACTED] Broadway in Manhattan, Police Officer Seturah Blease acted discourteously toward [REDACTED].

It was undisputed that [REDACTED] got into a verbal dispute with an employee at [REDACTED], that both parties called 911 in regard, and that [REDACTED] made threatening statements directed at the [REDACTED] employee to officers. It was also undisputed that PO Blease threatened to arrest [REDACTED], threatened to remove [REDACTED] to the hospital, and pointed her finger at [REDACTED]'s face.

[REDACTED] (**BR05, BR06**) consistently stated that she was having a verbal altercation with an employee regarding her medication when another employee tried to throw a shopping basket at her. She was eventually escorted out of the store, at which point she called 911. PO Blease and PO Delacruz responded, and she told them that she was waiting for the employee to come outside so she could “talk” with her about what had happened. PO Blease asked [REDACTED] if she was hurt, if she needed to go to the hospital, and then told her to leave the area multiple times. [REDACTED] repeated that she was going to wait for the employee to come outside at the end of her shift. PO Blease “got loud” and pointed her finger in [REDACTED]'s face, close enough that she could touch her. PO Blease told [REDACTED] to leave the area and that if she did not leave the area, she would be arrested.

PO Blease's (**BR07**) statement was generally consistent with that of [REDACTED], with the following exceptions. PO Blease responded to the scene due to a 911 call of a disorderly person refusing to leave [REDACTED]. When she arrived, she encountered [REDACTED] and a [REDACTED] manager outside. The manager stated that [REDACTED] was acting disorderly in the store. While the manager did not specifically state it, PO Blease understood this to mean that [REDACTED]

██████████ was not welcome back in the store.

██████████ made multiple threats of violence directed at the employee and wanted to re-enter the store. PO Blease told her that if she were to start another altercation with the employee she would be arrested. PO Blease explained that ██████████ could have been arrested for harassment. ██████████ ignored multiple verbal commands to leave the area and continued to make threatening statements. PO Blease then threatened to arrest ██████████ and send her to the hospital. PO Blease explained that she thought ██████████ could have been an Emotionally Disturbed Person (EDP) because ██████████ stated that she took medication and could have been having a reaction to not taking medication. ██████████ was irate and continued to make threatening statements. PO Blease did not have any discussion with ██████████ about her medication or mental health. ██████████ was not a danger to herself, but she was a danger to others because she was threatening the employee. PO Blease also told ██████████ she could be removed to the hospital to de-escalate the situation. There were no other reasons that indicated to PO Blease that ██████████ was an EDP.

PO Blease explained that she pointed her finger at ██████████ and then pointed down the street to emphasize that ██████████ needed to leave the area. She added that she also talks with her hands and mirrors her verbal statements with her body language. There were no other reasons she pointed at ██████████.

PO Delacruz (BR08), PO Kraljevic (BR09), and PO Beatty (BR10) provided statements consistent with PO Blease's with the following exceptions. PO Delacruz, PO Kraljevic, and PO Beatty stated that ██████████ could be arrested for disorderly conduct because civilians turned around and looked to see what was going on, however, no one stopped, and a crowd did not form. PO Delacruz and PO Kraljevic stated that ██████████ was yelling and causing a public inconvenience. PO Delacruz also noted that ██████████ used profanity.

PO Kraljevic stated that ██████████ was an EDP because she was a danger to herself. ██████████ was yelling and she was not compliant with PO Blease's command to leave, which is aligned with behavior that indicated to PO Kraljevic that ██████████ was not in the right statement of mind. ██████████ did not appear to be a danger to others. PO Beatty stated that ██████████ was considered an EDP because she was also a threat to civilians walking by because she was yelling, using profanity, and was irate and aggressive.

Both PO Delacruz and PO Beatty stated that there was no law enforcement purpose to PO Blease waving her finger at ██████████.

When ██████████ called 911 (BR11), she stated, "They want a police officer at ██████████ because I'm about to beat the shit out of this African lady." While the operator asks for the location, ██████████ says, "I will fuck you up. You mother that's why you don't know your fucking father. Go home you fucking African bitch." There is ongoing yelling, and ██████████ stops responding to the operator's questions.

The ██████████ manager called 911 (BR12) and explained, "There's a lady inside ██████████ and she's belligerent. She's threatening employees and customers." She is described as a short Black woman, with a black shirt, blue pants, in her 40s or 50s. The manager confirms no weapons are displayed. ██████████ is heard yelling in the background.

At 00:39 of the radio communication (BR13), there's a report of a dispute with a female inside the ██████████ fighting with other customers and refusing to leave.

The EVENT (BR24) is consistent with the 911 calls and radio communications.

PO Blease's BWC (BR01) is comprehensive and consistent with officer and civilian statements with the following exceptions. At 1:25, ██████████, a ██████████ manager, PO Blease, and PO Delacruz are outside the store. The manager says that ██████████ was making homicidal threats. ██████████ says she is going to come back at 11:30 and wait for the employee to come outside. She says, "Nobody is going to try and throw a basket at me and get away with it." At 2:04, PO Blease tells ██████████, "I understand that something happened in here but if you get into any altercation you are going to be arrested." At 2:39, PO Blease tells ██████████ she is

going to keep her outside of the store and to not start any other issues because it would result in some type of arrest. At 3:00, PO Blease tells [REDACTED] that if she tells officers that she is going to hurt the employee that she will be arrested. She asks [REDACTED] if she wants to be arrested. [REDACTED] replies that she wants to throw a basket at the employee. PO Blease responds, "So what you're telling me is that you want to get arrested." At 3:30, PO Blease says, "We are not going to escalate anything. You cannot come back inside and start anything because I'm telling you now, you'll get arrested." [REDACTED] replies that she has been arrested before. At 3:59, [REDACTED] says, "Don't think I'm a pushover now just because I'm sixty, because I will drop her ass to the ground and beat the hell out of her."

At 4:32, PO Blease walks up to [REDACTED], raises her voice, and says, "Ma'am I'm going to tell you one last time, you're going to leave or you're going to get arrested and I'm going to take you to the hospital because I already gave you your chance. You already told me what happened. You already told me what happened." PO Blease at first moves her hands in a circular motion with her thumb touching her other fingers, palm facing her body. Then she wags her hand left and right with her pointer finger sticking out towards [REDACTED]'s face. When PO Blease points, she only points at [REDACTED]'s face – she does not point down the street at any point.

New York Consolidated Law Service, Penal Code § 240.26 (BR14) states that a person is guilty of harassment in the second degree when he or she strikes, shoves, kicks or otherwise subjects such other person to physical contact, or attempts or threatens to do the same; or he or she follows a person in or about a public place or places; or he or she engages in a course of conduct or repeatedly commits acts which alarm or seriously annoy such other person and which serve no legitimate purpose.

New York Consolidated Law Service, Penal Code § 240.20 (BR25) states that a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: he engages in fighting or in violent, tumultuous or threatening behavior; or he makes unreasonable noise; or in a public place, he uses abusive or obscene language, or makes an obscene gesture; or without lawful authority, he disturbs any lawful assembly or meeting of persons; or he obstructs vehicular or pedestrian traffic; or he congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse; or he creates a hazardous or physically offensive condition by any act which serves no legitimate purpose.

NYPD Patrol Guide Procedure 221-13 (BR26) defines an emotionally disturbed person as someone who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others.

NYPD Patrol Guide Procedure 200-02 (BR27) states that the NYPD is committed to treating citizens with compassion, courtesy, professionalism, and respect. Officers are expected to render services with courtesy and civility.

It was undisputed that [REDACTED] made numerous statements threatening violence against the [REDACTED] employee and that PO Blease threatened to arrest [REDACTED] if she did so. PO Blease was merely informing [REDACTED] of the law. It is therefore recommended that **Allegation A** be closed as **within NYPD guidelines**.

As noted above, it was undisputed that [REDACTED] was agitated, that she refused to leave and intended to wait until she could retaliate against the employee, and that PO Blease threatened to take [REDACTED] to the hospital. Given [REDACTED]'s outsized agitation over an apparently small matter, her refusal to leave the location, and her insistence that she would wait until she was able to physically attack the employee, it was reasonable for PO Blease to consider her to be acting irrationally and conducting herself in a manner that was likely to result in serious injury to herself, to the employee in question, or other individuals in the general area. As such, it was also reasonable for PO Blease to want [REDACTED] to be evaluated by medical professionals. It is therefore recommended that **Allegation B** be closed as **within NYPD Guidelines**.

It was undisputed that PO Blease made a gesture with her finger towards [REDACTED] that [REDACTED] found to be discourteous. PO Blease's statement is consistent with BWC that she does indeed talk with her hands. However, given that PO Blease did not point in the direction in which [REDACTED] should have gone, and that she instead directly and closely pointed and wagged her finger toward [REDACTED]'s face, the investigation determined that the pointing and wagging gesture, specifically, served no legitimate law enforcement purpose and was, therefore, discourteous. As such, it is recommended that **Allegation C** be **substantiated**.

Allegation (D) Abuse of Authority: In front of located at [REDACTED] Broadway in Manhattan, Police Officer Mark Kraljevic threatened to arrest [REDACTED].

In [REDACTED]'s phone statement (BR05), she explained that PO Kraljevic yelled, "She said walk away, so walk away and keep walking," while pointing down the street. [REDACTED] responded, "Are you guys ganging up on me?" PO Kraljevic said, "No, she said walk away so keep walking or you will get arrested." PO Kraljevic did not tell [REDACTED] what she would be arrested for.

PO Kraljevic (BR09) stated that he did not threaten to arrest [REDACTED].

PO Kraljevic's BWC (BR03) is comprehensive, and at no point does he threaten to arrest [REDACTED].

BWC confirms that PO Kraljevic did not threaten to arrest [REDACTED] as alleged. It is therefore recommended that **Allegation D** be **unfounded**.

Allegation (E) Abuse of Authority: Over the phone, Sergeant Stephen Collich did not process [REDACTED]'s complaint regarding an officer.

It was undisputed by all parties that Sgt. Collich did not take [REDACTED]'s complaint over the phone, did not offer her additional options on how to file the complaint, and directed [REDACTED] to call the CCRB instead.

[REDACTED] (BR05) stated that she called the 24th Precinct's main line and was connected to Sgt. Collich. She explained what happened and told him that she would file a complaint against PO Blease with the CCRB. Sgt. Collich asked [REDACTED] if she had the CCRB's phone number. When she told him that she had the phone number at her home, he offered to provide it to her at that time. Sgt. Collich waited while [REDACTED] got a pen and piece of paper, and he gave her the CCRB's phone number. Sgt. Collich did not offer to take the complaint and did not offer [REDACTED] any other ways by which she could file the complaint.

Sgt. Collich (BR15) stated that [REDACTED] told him that she had an interaction in the street with PO Blease. However, she did not clarify the nature of her complaint or the date, time, and location. Sgt. Collich asked [REDACTED] if she had a complaint, and she did not directly respond. After unsuccessfully attempting to get more details about the interaction for approximately five minutes, Sgt. Collich provided [REDACTED] CCRB's phone number so that she could directly speak to CCRB if she wanted to, given that he did not have enough information to prepare a civilian complaint report.

Sgt. Collich added that [REDACTED] did not ask to file a complaint. Sgt. Collich did not refuse to take [REDACTED]'s complaint. Sgt. Collich did not know why he did not offer [REDACTED] other options, aside from CCRB's phone number, on how to file a complaint. The union representative asked if it was because he offered [REDACTED] the phone number and she accepted it, to which Sgt. Collich agreed.

In the command log (BR16), an entry at 5:05 p.m. notes, "Received call from [REDACTED] female age 50. Requesting the CCRB phone number to make a complaint against an officer."

A request for civilian complaint reports prepared for [REDACTED] on April 12, 2023, yielded negative results (BR17).

On September 1, 2023, the CCRB received notification that Sgt. Collich was no longer an

active member of service (**BR32**). On September 7, 2023, a call was placed to the NYPD Employment Verification Department (MOS Wheel), and SSA Nelson confirmed that Sgt. Collich retired (**BR 31**). A written request for confirmation was also submitted (**BR30**), and the results will be attached to the case file upon receipt.

NYPD Patrol Guide Procedure 207-28 (**BR28**) states that when civilians who wish to file a complaint in person, officers must interview the complainant, provide the civilian with a civilian complaint report, and assist or allow another person to assist the complainant with completing the report. Officers must also prepare a civilian complaint report and inform the Civilian Complaint Review Board

Given that Sgt. Collich has retired, it is recommended that **Allegation E** be closed as **Miscellaneous – Subject Retired**.

Allegation (F) Other Possible Misconduct Noted: Police Officer Seturah Blease failed to prepare a memo book entry as required.

Allegation (G) Other Possible Misconduct Noted: Police Officer Mark Kraljevic failed to prepare a memo book entry as required.

Allegation (H) Other Possible Misconduct Noted: Police Officer Crystal Beatty failed to prepare a memo book entry as required.

Both PO Blease (**BR07**) and PO Kraljevic (**BR09**) stated that they did not prepare a memo book entry because they were the operator. PO Beatty stated (**BR10**) that she did not prepare a memo book entry because she was not assigned to the job and responded as a backup unit.

PO Blease's, PO Kraljevic's, and PO Beatty's memo books confirm their lack of entries regarding this incident (**BR18, BR19, BR20**).

Officers below the rank of Captain are required to make memo book entries recording their assignments and performed tasks according to NYPD Patrol Guide Procedure 212-08 (**BR29**). Both the RPM operator and recorder must make entries recording enforcement actions taken.

Given that the officers responded to the job, they were required to make memo book entries regardless of whether they were the operator or if they were assigned the job.

PO Blease, PO Kraljevic, and PO Beatty did not prepare a memo book entry as required; therefore, it is recommended that **Allegations F, G, and H** result in **Other Possible Misconduct Noted**.

Civilian and Officer CCRB Histories

- [REDACTED] has been party to four CCRB complaints and has been named as a victim in five allegations (**BR21**).
 - 200102815 involved allegations of discourteous demeanor/tone and was closed as mediated.
 - 201505190 involved allegations of refusal to provide name/shield and was closed as officer unidentified.
 - 201506290 involved allegations of refusal to provide name/shield and was closed as mediated.
 - 202104418 involved an allegation of refusal to provide shield number, which was unfounded, and an allegation of refusal to provide name, which was exonerated.
- PO Blease has been a member of service for three years and has been a subject in two CCRB complaints and five allegations, none of which were substantiated. PO Blease's CCRB history does not reflect any apparent pattern pertinent to this investigation.
- PO Kraljevic has been a member of service for 14 years and has been a subject in four CCRB complaints and seven allegations, of which one was substantiated:
 - 202005989 involved substantiated allegations of entry of premises against PO Kraljevic. The Board recommended formalized training and the NYPD imposed formalized training. PO Kraljevic's CCRB history does not reflect any patterns pertinent to this investigation.

- ## Mediation, Civil, and Criminal Histories

- ## RPBP History

Reviewer: _____

_____ Signature	_____ Print Title & Name	_____ Date
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